

[1 EDW. 8. & *Kingsbridge and Salcombe* [Ch. lvi.]
[1 GEO. 6.] *Water Board Act, 1937.*



CHAPTER lvi.

An Act to alter the constitution of the Kings- A.D. 1937.
bridge and Salcombe Water Board to make the
Kingsbridge Rural District Council a constituent
authority to authorise the Board to construct
additional waterworks and for other purposes.
[1st July 1937.]

WHEREAS by the Kingsbridge and Salcombe Water 20 & 21
Board Act 1930 (in this Act referred to as "the Geo. 5.
Act of 1930") a board (in this Act called "the Board") c. lxxxi.
was constituted and appointed by the name of the
Kingsbridge and Salcombe Water Board consisting
of representatives of the Kingsbridge Urban District
Council (in this Act referred to as "the Kingsbridge
Council") and the Salcombe Urban District Council
(in this Act referred to as "the Salcombe Council") and
was empowered to construct waterworks for taking
water from the Bala Brook and delivering the same
by means of the works authorised by the said Act to the
Kingsbridge Council and the Salcombe Council for dis-
tribution by them in their respective districts under
the provisions of the Public Health Acts as varied
or supplemented by the provisions contained in the
Act of 1930 :

And whereas by the Act of 1930 provision was
made for the contributions by the constituent authorities
towards the annual expenditure of the Board and
as to the amounts of water to which each constituent
authority should be entitled :

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— And whereas by section 58 of the Act of 1930 power was conferred on the Board to supply water in bulk and in pursuance of that power the Board on the seventh day of May one thousand nine hundred and thirty-two and the twelfth day of May one thousand nine hundred and thirty-six respectively entered into agreements with the Kingsbridge Rural District Council (in this Act referred to as "the rural council") for supplies of water in bulk to the rural council for distribution by them within the parishes of Modbury and West Alvington respectively and the rural council for the purposes of distribution of the water so taken in bulk from the Board have under the former agreement provided certain mains and works (in this Act referred to as "the Modbury supply works") but no works have been constructed by the rural council for or in connection with the distribution of water within the parish of West Alvington :

And whereas the rural council are desirous of obtaining from the Board further supplies of water for the purpose of distribution within other parts of their district and with this object have requested to be made a constituent authority of the Board and the Board and the Kingsbridge Council and Salcombe Council are willing that the rural council should be made such a constituent authority in the manner and upon the terms provided by this Act :

And whereas the supply of water from the present waterworks of the Board would be inadequate to afford the rural council the further supplies of water which they require and it is expedient that the Board should be empowered to make and maintain the additional waterworks authorised by this Act :

And whereas it is expedient to make further provision in regard to the water undertaking of the Board and the supply of water by them and the supply of water by the rural council within the rural district of Kingsbridge or certain parts thereof :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

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And whereas estimates have been prepared by the Board for the purposes hereinafter mentioned and such estimates are as follows:— A.D. 1937.
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|--|--------|
| (a) The purchase of lands and ease- | £ |
| ments for the purposes of the works | |
| authorised by this Act and of the | |
| undertaking of the Board - - | 2,500 |
| (b) The construction of the works autho- | |
| rised by this Act - - - - | 43,500 |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the Board should be empowered to borrow money for those purposes as provided by this Act:

And whereas in relation to the promotion of the Bill for this Act the requirements of section 124 (Power to apply for further powers &c.) of the Act of 1930 have been observed by the Board and the requirements of Part XIII of the Local Government Act 1933 have been observed by the rural council: 23 & 24
Geo. 5. c. 51.

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the county council of the administrative county of Devon which plans sections and book of reference are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Kingsbridge and Salcombe Water Board Act 1937 and the Act of 1930 Short and collective titles.

A.D. 1937. and this Act may be cited together as the Kingsbridge and Salcombe Water Board Acts 1930 and 1937.

PART I.

—cont.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Alteration of constitution of Board and provisions consequent thereon.

Part III.—Lands and works.

Part IV.—Financial and miscellaneous provisions.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts with the following exception and modification :—

8 & 9 Vict.
c. 18.

(a) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Board and shall be sufficient without the addition of the sureties mentioned in that section:

10 & 11 Vict.
c. 17.

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say) :—

The construction of waterworks;

Mines;

The breaking up of streets for the purpose of laying pipes;

The provision for guarding against fouling the water of the undertakers:

26 & 27 Vict.
c. 93.

The provisions of the Waterworks Clauses Act 1863 with respect to the security of the reservoirs constructed by the undertakers:

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The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof.

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PART I.

—cont.

8 & 9 Vict.
c. 20.

Interpreta-
tion.

4.—(1) The several words and expressions to which meanings are assigned by the Acts partially incorporated herewith shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction.

In this Act unless the subject or context otherwise requires—

“The Board” means the Kingsbridge and Salcombe Water Board;

“The clerk” means the clerk to the Board;

“The Kingsbridge Council” means the Kingsbridge Urban District Council;

“The Salcombe Council” means the Salcombe Urban District Council;

“The rural district” means the rural district of Kingsbridge;

“The rural council” means the Kingsbridge Rural District Council;

“The present constituent authorities” means the Kingsbridge Council and the Salcombe Council;

“The councils” and “the constituent authorities” mean the Kingsbridge Council the Salcombe Council and the rural council and “constituent authority” means one of those councils;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

9 & 10
Geo. 5. c. 57.

“The undertaking” means the undertaking of the Board;

“The Act of 1930” means the Kingsbridge and Salcombe Water Board Act 1930;

“The appointed day” means the first day of April one thousand nine hundred and thirty-eight;

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PART I.

—cont.

38 & 39 Vict.
c. 55.

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

“The Modbury supply works” means the three-inch supply main from its junction with the main of the Board situate at Coldharbour Cross in the parish of Loddiswell to the Modbury service reservoir and the said reservoir;

“The rural supply area” means the part of the rural district within which the use of the water obtained by the rural council from the Board is for the time being permissible under the section of this Act whereof the marginal note is “Restriction on supply by constituent authorities”;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“Statutory security” “statutory borrowing power” and “the revenues of the Board” have the same meanings as are assigned to those expressions respectively by the Act of 1930.

(2) For the purposes of this Act the expressions “the promoters of the undertaking” “the company” and “the undertakers” in the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and the Waterworks Clauses Acts 1847 and 1863 shall be construed to mean the Board and in the Railways Clauses Consolidation Act 1845 the expression “the railway” shall be construed to mean the works by this Act authorised and in the case of any aqueduct conduit line or lines of pipes so much thereof as shall not be constructed in a highway and “the centre of the railway” shall be construed to mean the boundaries of the reservoirs by this Act authorised and the centre lines of so much of any such aqueduct conduit line or lines of pipes as aforesaid and of the other works by this Act authorised.

PART II.

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ALTERATION OF CONSTITUTION OF BOARD AND
PROVISIONS CONSEQUENT THEREON.

5.—(1) The rural council shall as from the appointed day become and remain a constituent authority and shall in this Act be deemed to be included in the expression “the constituent authorities” as though the rural council had been named a constituent authority in the Act of 1930.

Rural
council to
become con-
stituent
authority.

(2) The number of the members of the Board shall be increased to fifteen and the rural council shall be entitled to elect five persons from amongst the members of the rural council to be members of the Board.

(3) The first members of the Board representing the rural council shall be elected prior to the appointed day and shall come into office on the appointed day and shall continue in office for such period not being less than one year as the rural council shall determine but not beyond the thirtieth day of April one thousand nine hundred and forty-one.

(4) Subject to the provisions of this Act all the provisions of the Act of 1930 relative to the present constituent authorities and the members of the Board elected or to be elected by the present constituent authorities shall as from the appointed day apply mutatis mutandis to the rural council and to the members of the Board elected or to be elected by the rural council as if the rural council had been made a constituent authority by the Act of 1930.

(5) Part VI of the Act of 1930 shall apply to the rural council in respect of the supply of water by the rural council within the rural supply area only.

(6) For the purpose of its application to the rural council section 58 (Contracts for supplying water in bulk) of the Act of 1930 shall be construed as if the rural supply area were the district of the rural council.

(7) In section 65 (Rates payable by owners in certain cases) of the Act of 1930 the expression “constituent area” shall be construed to mean for the

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PART II.
—cont.

purpose of its application to the Kingsbridge Council or the Salcombe Council the district of that council and for the purpose of its application to the rural council the rural supply area.

Contribu-
tion by
rural council
in respect of
past capital
expenditure.

6. On the appointed day the rural council shall pay to the Board the sum of seven thousand five hundred and six pounds (being two-fifths of the sum of eighteen thousand seven hundred and sixty-five pounds paid by the Board prior to the first day of April one thousand nine hundred and thirty-six on revenue account out of the contributions of the present constituent authorities in respect of interest upon and provision for repayment of loans) together with a further sum equal to two-fifths of the total of any amounts which may be paid by the Board between the first day of April one thousand nine hundred and thirty-six and the appointed day on revenue account out of the contributions of the present constituent authorities in respect of interest upon and provision for repayment of loans raised by the Board and the said sum of seven thousand five hundred and six pounds and the said further sum so paid to the Board shall be divided between and paid over by the Board to the Kingsbridge Council and the Salcombe Council respectively in the proportions of forty-five per centum and fifty-five per centum.

Contribu-
tions by
constituent
authorities
in respect of
future ex-
penditure.

7. As from the appointed day subsection (2) of section 115 (Expenditure of the Board) of the Act of 1930 shall cease to have effect and in lieu thereof (subject to any agreement between the constituent authorities) the amounts required by the Board for all expenditure (other than capital expenditure but including interest upon and provision for repayment of loans) which will be incurred by the Board during any financial year or half-year after crediting any moneys to be received by the Board for supplies of water in bulk under section 58 of the Act of 1930 and any sums receivable or to become receivable by the Board periodically after the appointed day for grants in respect of works and any grants receivable by the rural council periodically after the appointed day in respect of the Modbury supply works (which must be paid over by the rural council to the Board)

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shall be apportioned among the constituent authorities as follows :— A.D. 1937.

twenty-seven per centum to the Kingsbridge Council;

thirty-three per centum to the Salcombe Council;
and

forty per centum to the rural council.

Any amounts so apportioned to the rural council shall be paid by them as special expenses out of a special rate to be levied under section 3 of the Rating and Valuation Act 1925 in the contributory places comprised in the rural supply area unless the rural council shall raise or provide the same in any other manner in pursuance of any statutory power in that behalf. 15 & 16 Geo. 5. c. 90.

8. As from the appointed day the agreements dated the seventh day of May one thousand nine hundred and thirty-two and the twelfth day of May one thousand nine hundred and thirty-six respectively and made between the Board of the one part and the rural council of the other part in pursuance of section 58 of the Act of 1930 for supplies by the Board to the rural council of water in bulk for distribution within the parishes of Modbury and West Alvington in the rural district shall be determined without prejudice to any rights or liabilities of the parties thereto respectively then already accrued thereunder. Determination of agreements with rural council.

9.—(1) As from the appointed day subsection (1) of section 57 (Apportionment of water) of the Act of 1930 shall cease to have effect and in lieu thereof each of the constituent authorities shall be entitled to such quantity of the water obtained by the Board and available for supply purposes as they may require. Provided that if there shall be insufficient water to meet the requirements of all the constituent authorities the quantities to which they shall be respectively entitled shall be in proportion to the shares in which they respectively contribute to the annual expenditure (other than capital expenditure but including interest upon and provision for repayment of loans) of the Apportionment of water.

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PART II.
—cont.

Board and the point or points at which the water to which the rural council are entitled shall be delivered by the Board to them and its division as between any such points of delivery and the manner in which the water so delivered shall be measured shall be such as may from time to time be agreed between the Board and the rural council or as may in default of agreement be determined by arbitration in manner provided by section 30 of the Act of 1930.

(2) The expression "the constituent authorities" in subsection (2) of the said section 57 of the Act of 1930 shall not apply to or include the rural council.

Restriction
on supply by
constituent
authorities.

10. None of the constituent authorities shall without the consent of the other two supply water obtained from the Board to any local authority company or person outside their respective districts and subject as hereinafter provided the water obtained by the rural council shall not be used for supply within any part of the rural district other than the following contributory places (that is to say):—

Bigbury Ringmore Buckland-Tout-Saints Charleton
Churchstow Kingston Loddiswell Malborough
Modbury South Huish South Milton Thurle-
stone West Alvington Sherford South Pool
Slapton Aveton Gifford and Stokenham :

Provided that at any time by agreement in writing between the Board and the rural council and upon such terms and subject to such conditions as may in such agreement be provided the rural supply area may be extended by including therein any other contributory place or places for the time being within the district of the rural council.

Vesting of
Modbury
supply
works in
Board.

11. On the appointed day the Modbury supply works shall by virtue of this Act become and be transferred to and vested in the Board and the Board shall in consideration of such transfer pay to the rural council the amount of any outstanding debt owing by the rural council at the appointed day and not then due for repayment or provided for by sinking fund in respect of any money borrowed by the rural council for capital expenditure upon the Modbury supply works.

PART III.

A.D. 1937.

LANDS AND WORKS.

12. Subject to the provisions of this Act the Board may for the purposes of this Act and of the undertaking enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference.

Acquisition
of lands.

13. The quantity of land which may be taken by the Board from the common or commonable land known as Brent Moor in the parish of South Brent for the purposes of this Act shall not exceed ten acres one rood and thirty perches.

Limiting
quantity of
commonable
land to be
taken.

14. The powers of the Board for the compulsory purchase of lands under this Act shall cease after the first day of October one thousand nine hundred and forty.

Period for
compulsory
purchase of
lands.

15.—(1) The Board may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements or rights only in such lands as they may require for such purposes (including the making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such works) and may give notice to treat in respect of such easements or rights describing the nature thereof and the rights which the Board require for or incidental to the said purposes and the restrictions subject to which the owners and occupiers may use the lands and the provisions of the Lands Clauses Acts and of this Act shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

Board may
acquire
easements
only in cer-
tain cases.

(2) As regards any lands in respect of which the Board have acquired easements or rights only under the provisions of this section the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but unless otherwise agreed the owners or occupiers for the time being shall subject to such easements or rights and any

A.D. 1937. other restrictions imposed upon the owners and
occupiers have the same rights to use and cultivate
the said lands at all times as if this Act had not been
passed.

PART III.
—cont.

Easements
only in
respect of
Work No. 2.

16.—(1) Notwithstanding anything contained in this Act the Board shall not acquire any part of Brent Moor for the purpose of Work No. 2 the conduit or line or lines of pipes (No. 1) authorised by this Act which will be situate entirely beneath the surface but in pursuance of section 15 (Board may acquire easements only in certain cases) of this Act they may acquire such easements and rights in such land as they may require for the purposes mentioned in that section.

(2) The surface of any part of Brent Moor which may be disturbed by reason of any easement or right acquired by the Board under this Act shall as soon as practicable be restored to its former position.

Owners may
be required
to sell part
only of
certain
premises.

17.—(1) Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Board of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(a) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are in this section included in the term “the owner” and the said properties are in this section collectively referred to as “the scheduled properties” and severally as a “scheduled property”;

(b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Board that he alleges that such portion cannot

be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise;

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PART III.
—cont.

- (c) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by the tribunal determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed;
- (d) If the tribunal determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the tribunal shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;
- (e) If the tribunal determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under

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PART III.
—cont.

this section shall be borne and paid by the owner;

(f) If the tribunal determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;

(g) If the tribunal determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any of the scheduled properties.

Incorpora-
tion of
certain

18. The following sections of the Act of 1930 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if those sections

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with the necessary modifications were set out in this A.D. 1937.
Act (namely):—

PART III.

—cont.

provisions
of Act of
1930.

Section 37 (Byelaws for preventing pollution
of water) subject to amendment
as in this Act provided;

Section 40 (For protection of Postmaster-
General);

Section 46 (Correction of errors in deposited
plans and book of reference);

Section 48 (Compensation in case of recently
acquired interest);

Section 50 (Costs of arbitration in certain cases);

Section 51 (Powers for protection of water
supply);

Section 53 (Persons under disability may grant
easements &c.);

Section 54 (Reservation of water rights &c.
on sale);

Section 55 (Power to retain sell &c. lands);

Section 56 (Proceeds of sale of surplus lands):

Provided that in the application of section 46
of the Act of 1930 the clerk of the county council of the
administrative county of Devon shall be substituted
for the clerk of the peace for the county of Devon and
in the application of section 48 of the Act of 1930
that section shall be read and have effect as if the
first day of November one thousand nine hundred and
thirty-six were therein referred to instead of the first
day of November one thousand nine hundred and
twenty-nine.

19. The Board and their surveyors officers and
workmen and any person duly authorised in writing
under the hand of the clerk may from time to time
at all reasonable times in the day upon giving in writing
for the first time twenty-four hours' and afterwards
from time to time twelve hours' previous notice enter
upon and into the lands houses and buildings authorised
by this Act to be taken and used or any of them for the
purpose of surveying and valuing the said lands houses
and buildings without being deemed trespassers and
without being subject or liable to any fine penalty or

Power to
enter upon
property
for survey
and valua-
tion.

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PART III.

—cont.

Power to
make water-
works.

punishment on account of entering or continuing upon any part of the said lands houses and buildings.

20.—(1) Subject to the provisions of this Act the Board may make and maintain and from time to time alter renew and reconstruct in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterworks hereinafter described all in the county of Devon (namely) :—

In the rural district of Totnes—

Work No. 1 An intake and weir situate wholly in the parish of South Brent to be constructed across the river Avon at a point 26 chains or thereabouts measured in a direct line in a north-westerly direction from Brentmoor House;

Work No. 2 A conduit or line or lines of pipes (No. 1) situate wholly in the said parish of South Brent commencing in Work No. 1 and terminating in the existing main of the Board in the inclosure No. 310 on the 1/2500 Ordnance map Devonshire sheet CXIX.4 (edition of 1906);

Work No. 3 An access road situate wholly in the said parish of South Brent commencing in Work No. 1 before described and terminating in an existing road or track at a point 11 chains or thereabouts measured in a north-westerly direction from the north-western corner of Brentmoor House;

Work No. 3A An improvement of the existing road or track situate wholly in the parish of South Brent commencing at the termination of Work No. 3 and terminating at the entrance to Brentmoor House at the south-eastern corner of the inclosure No. 350 on the 1/2500 Ordnance map Devonshire sheet CXIX.4 (edition of 1906);

Work No. 4 A conduit or line or lines of pipes (No. 2) situate wholly in the parish of Ugborough commencing in a junction with

the existing pipe line of the Board in the road opposite the northern boundary of the inclosure No. 1879 on the 1/2500 Ordnance map Devonshire sheet CXX.13 (edition of 1906) and terminating in the existing main of the Board in the road opposite the southern boundary of the said inclosure No. 1879.

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PART III.

—cont.

In the rural district of Kingsbridge—

Work No. 5 A tank or service reservoir situate wholly in the parish of Loddiswell in the inclosure No. 1030 on the 1/2500 Ordnance map Devonshire sheet CXXVI.14 (edition of 1906);

Work No. 6 A conduit or line or lines of pipes (No. 3) commencing in the said parish of Loddiswell in the existing service tank of the Board situate in the said inclosure No. 1030 and terminating in the parish of Bigbury in Work No. 7 hereinafter described;

Work No. 7 A tank or service reservoir situate wholly in the said parish of Bigbury in the inclosure No. 401 on the 1/2500 Ordnance map Devonshire sheet CXXXI.12 (edition of 1906);

Work No. 8 A conduit or line or lines of pipes (No. 4) commencing in the said parish of Loddiswell by a junction with Work No. 6 (conduit No. 3) at a point 1 chain or thereabouts east of Knap Mill and terminating in the parish of West Alvington in the existing main of the Board at West Alvington Butts;

Work No. 9 A conduit or line or lines of pipes (No. 5) commencing in the parish of Buckland-Tout-Saints in the existing service tank of the Board situate in the inclosure No. 324 on the 1/2500 Ordnance map Devonshire sheet CXXXII.11 (edition of 1906) and terminating in the parish of Stokenham in Work No. 10 hereinafter described;

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PART III.
—cont.

Work No. 10 A tank or service reservoir situate wholly in the parish of Stokenham in the inclosure No. 1723 on the 1/2500 Ordnance map Devonshire sheet CXXXIII.13 (edition of 1906);

Work No. 11 A conduit or line or lines of pipes (No. 6) commencing in the said parish of West Alvington by a junction with Work No. 8 (conduit No. 4) at Heddiswell Cross and terminating in the parish of South Milton in the existing service tank of the Dowglass Estate situate partly in the inclosure No. 124 and partly in the inclosure No. 125 on the 1/2500 Ordnance map Devonshire sheet CXXXVI.1 (edition of 1906);

Work No. 12 A tank or service reservoir situate wholly in the said parish of West Alvington in the inclosure No. 180 on the 1/2500 Ordnance map Devonshire sheet CXXXVI.2 (edition of 1906);

Work No. 13 A conduit or line or lines of pipes (No. 7) situate wholly in the parish of Malborough commencing in a junction with the existing main of the Board at a point 11 chains or thereabouts south-east of Blanks-mill Cross and terminating in the existing service tank of the rural council situate in the inclosure No. 206 on the 1/2500 Ordnance map Devonshire sheet CXXXVI.10 (edition of 1906).

(2) In addition to the foregoing works the Board may upon the said lands make and maintain all such tanks filter beds overflows shafts tunnels adits bores aqueducts culverts conduits mains drains banks telegraphs telephones and other subsidiary works engines machinery plant buildings and apparatus as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this subsection shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

21. In the construction of the waterworks authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where in any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits and they may also except where any of the said works will pass over or under the railway of any railway company in which case no such vertical deviation shall be made without the consent of the company deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards :

Provided that except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

22.—(1) If at the appointed day the Works Nos. 8 11 and 12 by this Act authorised or any part thereof or any works in connection therewith or subsidiary thereto shall have been constructed by the rural council under the powers of the Public Health Acts for the purpose of enabling the rural council to supply within the parishes of West Alvington and South Milton in the rural district or either of those parishes water obtained by the rural council from the Board the following provisions shall have effect with respect to the works so constructed (in this section referred to as "the further bulk supply works") :—

(a) On the appointed day the further bulk supply works shall by virtue of this Act become and be transferred to and vested in the Board and the Board shall be entitled to maintain and from time to time alter renew and reconstruct the same as if they had been constructed by the Board under the powers of this Act;

(b) In consideration of the said transfer the Board shall pay to the rural council the amount of any outstanding debt owing by the rural council at the appointed day and not then due for repayment or provided for by sinking fund in respect of any money borrowed by the rural council for capital expenditure upon the further bulk supply works.

A.D. 1937.

—
PART III.

—cont.

Limits of
deviation
for water-
works.

As to con-
struction of
further bulk
supply
works by
rural
council.

A.D. 1937.

PART III.
—cont.

(2) Before the rural council shall commence the construction of the further bulk supply works or any part of those works the plans sections and specifications in relation thereto shall be submitted by the rural council to and approved by the Board.

(3) The rural council in constructing the further bulk supply works shall conform to all such reasonable conditions with respect to the execution and completion thereof as the Board may think fit to impose and may notify in writing to the rural council.

(4) Any money borrowed by the rural council for capital expenditure upon the further bulk supply works shall be borrowed in conformity with such conditions (if any) within the powers of the rural council as the Board may by notice in writing to the rural council prescribe in regard to the period for which and the manner in which the money is to be borrowed.

Application
of moneys
paid by
Board to
rural
council.

23. Any moneys paid by the Board to the rural council under the provisions of the sections of this Act of which the marginal notes are "Vesting of Modbury supply works in Board" and "As to construction of further bulk supply works by rural council" shall be applied by the rural council towards repayment of the outstanding debt in respect of which such moneys are paid.

As to
certain
outstanding
loans on
water
undertaking
of rural
council.

24. Notwithstanding the transfer from the rural council to the Board of the Modbury supply works and the works referred to in the section of this Act of which the marginal note is "As to construction of further bulk supply works by rural council" the rural council shall continue to be liable for and pay all sums which at the appointed day are outstanding in respect of interest and loan charges on any loans incurred by the rural council in respect of the Modbury supply works and the works defined in the last-mentioned section as the further bulk supply works.

Power to
take waters.

25. Subject to the provisions of this Act the Board may collect impound take use divert and appropriate for the purposes of their waterworks or for any of the purposes of the Act of 1930 and this Act the waters of the river Avon and its tributaries and all such springs streams and waters as may be intercepted by the

[1 EDW. 8. & *Kingsbridge and Salcombe* [Ch. lvi.]
1 GEO. 6.] *Water Board Act, 1937.*

intake and weir Work No. 1 authorised by this Act or as may be situate or flowing upon any of the lands shown on the deposited plans as within the limit of land to be acquired for such work. A.D. 1937.
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PART III.
—cont.

26.—(1) If the waterworks authorised by this Act and delineated on the deposited plans other than the portion of Work No. 8 from its commencement to Heddiswell Cross are not completed by the first day of October one thousand nine hundred and forty-two and if the said portion of Work No. 8 is not completed by the first day of October one thousand nine hundred and forty-seven then subject to the provisions of subsection (2) of this section the powers granted by this Act for constructing the same or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Period for completion of water-works.

(2) Provided that the Board may extend enlarge alter reconstruct renew or remove any of their water-works and plant and in the case of the conduits or lines of pipes may lay down additional lines of pipes as and when occasion may require.

27.—(1) The Board during the execution of the works authorised by this Act may temporarily stop up and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Board shall provide reasonable access for foot passengers bona fide going to or from any such house.

28. The waterworks authorised by this Act shall for all purposes be deemed to be part of the undertaking. Works to form part of undertaking.

29.—(1) The Board shall not take any water from the river Avon by means of Work No. 1 by this Act authorised except when water is flowing in the river Avon immediately below the said Work No. 1 at a rate of not less than eight hundred and fifty thousand gallons in twenty-four hours. Restrictions on taking water.

(2) The Board shall not in any one day of twenty-four hours upon which water is abstracted take from

A.D. 1937. the said river Avon a greater total quantity of water than five hundred thousand gallons.

PART III.

—cont.

(3) For the purpose of measuring the quantity of water taken by the Board from time to time under the provisions of this Act and for the purpose of measuring the quantity of water which by this section the Board are required to permit to pass down the said river Avon the Board shall before taking diverting or appropriating any such water erect and maintain at or near Work No. 1 by this Act authorised proper and sufficient automatically recording measuring gauges meters or orifices over or through which respectively the waters so taken diverted or appropriated and the waters so flowing shall pass.

(4) Subsections (4) (5) (6) (7) and (8) of section 35 (Restrictions on taking water) of the Act of 1930 shall apply to the preceding provisions of this section as if they had been re-enacted in this section with the substitution of references to the river Avon for the Bala Brook.

Board may
provide
gauges.

30.—(1) The Board may provide place and maintain at any point or points in the river Avon and above or below the intake authorised by the section of this Act of which the marginal note is “Power to make waterworks” such gauges and other apparatus for measuring the flow of the river as they may consider necessary.

(2) The said gauges shall be erected and maintained to the approval of the Minister of Agriculture and Fisheries and in such manner as to interfere as little as reasonably possible with the natural flow of the said river and with the passage of fish up and down the said river.

(3) If any difference arises between the Board and the Avon (Devon) Fishery Board or any person interested therein with respect to the state of repair or condition of any gauge such difference shall be referred to the arbitration of an engineer to be nominated unless otherwise agreed on the application of either of them by the President of the Institution of Civil Engineers.

31. Subject to the provisions of the Waterworks
Clauses Act 1847 with respect to the breaking up of
streets the Board may for the purposes of effecting
telegraphic or telephonic communication between to
or from the Board's works and offices lay down
maintain alter repair and renew mains tubes electric
and other wires and apparatus in the soil of any street
road highway or footpath (a) within the rural district
or (b) in which any mains pipes or apparatus of the
Board may be constructed or laid down under the
powers of this Act Provided that the Board shall
not without the previous consent of the Great Western
Railway Company exercise the powers of this section
in respect of any street road highway or footpath which
is the property of the Great Western Railway Company
but such consent shall not be unreasonably withheld.

A.D. 1937.

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PART III.
—cont.

Telephonic
wires and
apparatus
in streets.

32. Section 37 (Byelaws for preventing pollution
of water) of the Act of 1930 shall have effect as if—

Extension
of area for
byelaws as
to pollution.

(1) in subsection (2) thereof for the words "within
"the parish of South Brent or within so much
"of that parish" there were substituted the
words "within the parishes of South Brent
"Dean Prior and West Buckfastleigh in the
"rural district of Totnes and the parish
"of Lydford in the rural district of Tavistock
"or within such of those parishes or so much
"of any of them";

(2) in subsection (4) thereof the words "and
"to the clerk to the Tavistock Rural District
"Council" were inserted after "Totnes Rural
District Council"; and

(3) in the said subsection (4) for the words "the
said rural district council" there were
substituted the words "the said rural district
councils or either of them."

33.—(1) Section 76 (Disability of members of
authorities for voting on account of interest in contracts
&c.) of the Local Government Act 1933 shall apply
to the members of the Board as though that section
had been re-enacted in this Act with the substitution
of the words "the Board" for the words "a local
authority" or "the authority" and the word "Board"
for "local authority" or "authority."

Application
of section 76
of Local
Government
Act 1933 to
Board.

A.D. 1937.

PART III.
—cont.

(2) The provisions of section 76 (Disability of members of authorities for voting on account of interest in contracts &c.) of the Local Government Act 1933 as applied to the members of the Board by subsection (1) of this section shall apply in respect of members of a committee or sub-committee of the Board as those provisions apply in respect of members of the Board with the substitution of references to meetings of the committee or sub-committee for references to meetings of the Board.

For protec-
tion of
Devon
County
Council.

34. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions for the protection of the county council of the administrative county of Devon (in this section referred to as "the county council") shall unless otherwise agreed in writing between the Board and the county council apply and have effect with reference to the exercise by the Board of the powers of this Part of this Act in regard to the construction of the conduits or line or lines of pipes Works Nos. 4 6 8 9 11 and 13 authorised by this Act in so far as such conduits or line or lines of pipes will be constructed along roads or county bridges vested in and repairable by the county council (that is to say):—

(1) (a) For the purpose of any notice required under section 30 of the Waterworks Clauses Act 1847 to be given by the Board to the county council the period of seven days shall (except in cases of emergency) be substituted for the period of three days mentioned in that section;

(b) The plan required by section 31 of the Waterworks Clauses Act 1847 shall be accompanied by a section of the proposed works and shall be delivered (except in cases of emergency) to the county council by the Board not less than fourteen days before the Board commence to open or break up the road along which the said conduits or line or lines of pipes are to be laid and any such plan and section shall be deemed to be approved by the county council unless within fourteen days after the delivery thereof the surveyor to the county council informs the Board of the requirements of the county council in regard thereto;

(c) Where the same may be constructed under any road vested in the county council the works shall be executed at the expense of the Board to the reasonable satisfaction of the said surveyor and in accordance with plans and sections to be submitted to and reasonably approved by him in writing before the commencement of any such work:

Provided that if the said surveyor shall not within fourteen days after the same shall have been submitted to him signify his requirements in relation thereto he shall be deemed to have approved thereof:

- (2) All works shall be so executed by the Board as not unreasonably to impede or interfere with the traffic on any county road or over any county bridge:
- (3) The Board shall not construct the tanks or service reservoirs authorised by this Act or any addition or alteration thereto nearer to the centre of any county road adjoining the site of any of such works or any addition or alteration thereto than the distances specified respectively in the second column of the following table opposite to the respective numbers of the said works set out in the first column of the said table (that is to say):—

No. of work.	Distance from centre of county road.
5	75 feet
7	75 feet
10	60 feet
12	40 feet

- (4) Any difference which may arise between the county council and the Board under this section shall be referred to and determined by a single arbitrator to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Acts 1889 to 1934 shall apply to any such determination.

A.D. 1937.

PART III.

—cont.

A.D. 1937.

PART IV.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

35.—(1) The provisions of the Local Government Act 1933 relating to the borrowing of money by a local authority shall so far as applicable extend and apply to the Board as if they were a local authority within the meaning of that Act.

(2) The Board shall have power in addition and without prejudice to the powers of borrowing authorised by subsection (1) of this section from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and the Board shall pay off all moneys so borrowed within such periods as the Board may determine not exceeding those respectively mentioned in the third column of the said table (namely) :—

Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and easements acquired under Part III of this Act.	£ 2,500	Sixty years from the date or dates of borrowing.
(b) The construction of the works authorised by this Act including any sums paid to the rural council under the provisions of the section of this Act whereof the marginal note is "As to construction of further bulk supply works by rural council."	43,500	Fifty years from the date or dates of borrowing.
(c) The costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Board may mortgage or charge the revenues of the Board.

36. Sections 213 and 214 of the Local Government Act 1933 shall apply with respect to any sinking fund formed by the Board for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage under the said Act of 1933 and the Board shall make such adjustments of any existing funds as may be proper.

A.D. 1937.

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PART IV.

—cont.

Application
of Local
Government
Act 1933 to
existing
sinking
funds.

37. For the purposes of the definition of "statutory securities" in section 218 (Definitions) of the Local Government Act 1933 the securities created by the Board shall be deemed to be securities created by a local authority.

As to
securities
of Board.

38. If and so far as the capital expenditure of the Board (as certified by the engineer to the Board) on Works Nos. 6 7 9 10 11 12 and 13 by this Act authorised and such part of Work No. 8 by this Act authorised as extends from Heddiswell Cross to the existing main of the Board at West Alvington Butts when added to any such outstanding debts owing by the rural council at the appointed day as are mentioned in the sections of this Act whereof the marginal notes are "Vesting of Modbury supply works in Board" and "As to construction of further bulk supply works by rural council" shall amount to a sum in excess of fourteen thousand pounds the rural council shall pay to the Board such proportion of the interest and instalments of principal or sinking fund charges on all moneys borrowed by the Board for the capital expenditure on the said works as is equal to the proportion which the amount of the said excess bears to the whole amount of the moneys so borrowed.

As to pay-
ment by
rural council
of loan
charges in
respect of
certain ex-
penditure.

39. The following provisions of the Act of 1930 are hereby repealed:—

Repeal of
existing
enactments.

Subsection (2) of section 11 (Disqualification of members);

Subsection (1) of section 57 (Apportionment of water);

Section 91 (Restriction on supply in bulk by constituent authorities);

Subsection (2) of section 115 (Expenditure of Board).

A.D. 1937.

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 PART IV.
 —cont.

Obligation
 on con-
 stituent
 authorities
 to control
 waste.

40.—(1) Each of the constituent authorities shall to the satisfaction of the Board make byelaws in pursuance of the provisions of section 80 (Byelaws for preventing waste &c. of water) of the Act of 1930 for the purposes mentioned in subsection (1) of that section. Such byelaws shall be made in the case of the present constituent authorities within three months after the passing of this Act and in the case of the rural council within three months after the appointed day.

(2) If any constituent authority shall fail to comply with its obligations under subsection (1) of this section the Board may enforce those obligations in the High Court by writ of mandamus to be obtained on the application of the Board and without prejudice to that power the Board may if they think fit exercise in place and on behalf of the constituent authority so in default all or any of the powers for the time being vested in such constituent authority for or in connection with the making of the byelaws referred to in that subsection.

(3) If at any time after such byelaws as aforesaid have been made by or on behalf of any of the constituent authorities and the Board shall be satisfied that such authority has failed either (a) in any particular instance or (b) generally to enforce in a sufficient and satisfactory manner the requirements of such byelaws the Board may by resolution require that in case (a) for the purposes of the particular instance and in case (b) generally during such period not exceeding one year as the resolution may specify the Board shall be entitled in place and to the exclusion of such constituent authority to exercise all or any of the powers for the time being vested in such constituent authority for or in connection with the enforcement of the requirements of such byelaws and upon the passing of such resolution the Board shall accordingly become and be entitled to exercise the said powers.

(4) Any expenses incurred by the Board under subsection (2) of this section in regard to any constituent authority shall (subject as regards expenses in relation to any application for a writ of mandamus to any order or direction of the High Court) be a debt due from that constituent authority to the Board and shall be defrayed as part of the expenses of that

constituent authority in the execution of their powers and functions under the Act of 1930 and this Act. A.D. 1937.

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PART IV.
—cont.

41.—(1) If at any time the Board shall be satisfied that any of the constituent authorities has failed duly to execute any work which the Board deem necessary or proper for repairing any injury to or defect in any main or pipe belonging to or maintainable by such constituent authority through which water supplied by the Board flows and that by reason of such failure there is waste or risk of waste of such water the Board may if they think fit exercise in place and on behalf of such constituent authority all or any of the powers for the time being vested in such constituent authority for or in connection with the execution of such work. Provided that except in case of emergency the Board shall not execute any such work unless they shall have given to such constituent authority notice in writing requiring such authority to execute such work within a period specified in the notice and such authority shall have failed to comply with the requirements of the notice within the period so specified. Power for Board to repair mains of constituent authorities on their default.

(2) Any expenses incurred by the Board in executing any work under subsection (1) of this section or in ascertaining or discovering the need for the execution of such work (including the expense of breaking up filling in reinstating and making good any road pavement or soil) shall be a debt due to the Board from the constituent authority in whose default the work has been executed and shall be defrayed in the same manner as if such expenses had been incurred by such constituent authority themselves in executing the like work.

42.—(1) The Board may pay any reasonable expenses incurred by members of the Board or of any committee thereof or by the officers or employees of the Board in attending meetings of the Board or of any committee of the Board or in travelling for the purpose of carrying out any inspection or investigation necessary for the discharge of the functions of the Board or such committee. Payment of certain expenses.

(2) The Board may pay—

(a) the reasonable subscriptions (whether annually or otherwise) to the funds of any

A.D. 1937.

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PART IV.
—cont.

association of water boards or water undertakers or of the officers of any such boards or undertakers formed for the purpose of consultation as to the common interests of such boards or undertakers and the discussion of matters relating to water supply or to the funds of any scientific or other society or body (not carrying on business for profit) which or the members of which are engaged in investigations or the keeping of records of use or value to water undertakers and any reasonable expenses of the attendance of any members or officers of the Board at conferences or meetings of such associations societies or bodies and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings; and

- (b) the reasonable expenses incurred by the Board in connection with the public opening of works of the Board or works from which the Board may be entitled to a supply of water and in connection with visits by members officers or employees of the Board to the works or premises of other water undertakers or of the Board and in connection with the entertainment of representatives of other authorities visiting the Board's works or premises.

Expenses of
execution
of Act.

43. Any expenses of the execution by the Board of this Act with respect to which no other provision is made shall be paid by the Board out of the revenues of the Board.

Judges not
disqualified.

44. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Application
of section
266 of Local
Government
Act 1933.

45. Section 266 (Contracts of local authorities) of the Local Government Act 1933 shall apply to all contracts of the Board made after the passing of this Act as if the Board were a local authority within the meaning of that section.

[1 EDW. 8. & *Kingsbridge and Salcombe* [Ch. lvi.]
1 GEO. 6.] *Water Board Act, 1937.*

46. Where under any Act or Order from time to time relating to the Board the Board give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

A.D. 1937.

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PART IV.
—cont.

As to breach
of conditions
of consent
of Board.

47. The provisions of section 250 (Procedure &c. for making byelaws) and section 251 (Fines for offences against byelaws) of the Local Government Act 1933 shall apply to all byelaws made by the Board under the powers of this Act as if the Board were a local authority within the meaning of that Act and the Minister of Health shall be the confirming authority under the said section 250.

Confirma-
tion of
byelaws.

48. The Minister of Health may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents by or in consequence of this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries by
Minister.

49. Nothing in this Act shall authorise the Board to take use enter upon or interfere with any land or soil or any rights in respect thereof belonging to His Majesty in right of the Duchy of Cornwall except with the consent in writing of at least two of such of the regular officers of the said duchy or of such other persons as are duly authorised under section 39 of the Duchy of Cornwall Management Act 1863 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the said duchy or belonging to the Duke of Cornwall for the time being without the consent of such duke testified in writing under the seal of the Duchy of Cornwall first had and obtained for that purpose or to take away diminish alter prejudice or affect any property rights profits privileges powers or authorities vested in or enjoyed by His Majesty in right of the Duchy of Cornwall or in or by the Duke of Cornwall for the time being.

Saving
rights of
Duchy of
Cornwall.

26 & 27 Vict.
c. 49.

A.D. 1937.

PART IV.
—cont.
Costs of Act.

50.—(1) The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of the revenues of the Board or out of money to be borrowed under this Act for that purpose.

(2) The amount of the said costs charges and expenses or if and so far as the same shall be borrowed by the Board the amounts paid by the Board from time to time for interest and instalments of principal or sinking fund charges in respect of the money so borrowed shall be paid to the Board by the rural council as special expenses out of a special rate to be levied under section 3 of the Rating and Valuation Act 1925 in the contributory places comprised in the rural supply area unless the rural council shall raise or provide the same in any other manner in pursuance of any statutory power in that behalf.

The SCHEDULE referred to in the
foregoing Act.

PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Area.	Numbers on deposited plan.
Parish of South Brent - - - -	6.
Parish of Aveton Gifford - - - -	9 10 16 18 19.
Parish of Bigbury - - - -	1 7.
Parish of Buckland-Tout-Saints - - - -	7 8 10.
Parish of Sherford - - - -	1B 18 19 19A.
Parish of West Alvington - - - -	10.
Parish of Malborough - - - -	5A.

Printed by EYRE AND SPOTTISWOODE LIMITED
FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

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